

23STCV23834 23STCV23834

County: los-angeles

Division: Civil Law and Motion

Department: 529

Hearing date: 2026-08-28

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C529%2C08%2F28%2F2026

Source SHA-256: 4f2ef42323469fd70a2d14228a48a986947d5b471b5edaf08ab3df492e84c798

Case Number: 23STCV23834 Hearing Date: August 28, 2026 Dept: 529

AVRAHAM AVRILI

vs ISAAC ZAHARONI, et al.

demurrer to the FOURTH amended
complaint

Date of Hearing: August

28, 2026 Trial

Date: None

set.

Department: 529 Case

No.: 23STCV23834

Moving Party: Defendants

Isaac Zaharoni and Wai Sheung Choy

Responding Party: Plaintiff

Avraham Arvili

Meet and Confer: Yes.

(Urtnowski Decl.)

BACKGROUND

On

September 29, 2023, Plaintiff Avraham Arvili filed a complaint against

Defendants Isaac Zaharoni and Zaharoni Industries, Inc. for cancellation of

instrument and slander of title. On February 11, 2025, Plaintiff amended their complaint adding causes of action for intentional interference with prospective economic advantage, negligent interference with prospective economic advantage, money had and received, and a request for accounting.

On

July 16, 2025, Plaintiff filed a Second Amended Complaint, adding Wai Sheung Choy as a defendant. On December 8, 2025, Plaintiff filed a Third Amended Complaint asserting causes of action for cancellation of instrument – deed of trust, slander of title, intentional interference with prospective economic advantage, conversion, trespass, and unjust enrichment.

On

April 15, 2026, Plaintiff filed a Fourth Amended Complaint, adding a claim for official misconduct (Gov. Code §8214).

[Tentative] Ruling

Defendant Isaac Zaharoni's Demurrer to the Sixth Cause of Action is OVERRULED.

DISCUSSION

Defendant Isaac Zaharoni demurs to the sixth cause of action for restitution on the grounds there is no cause of action for unjust enrichment in California.

A demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed. (CCP §§ 430.30, 430.70.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) A "demurrer does not, however, admit contentions, deductions or conclusions of fact or law alleged in the pleading, or the

construction of instruments pleaded, or facts impossible in law.” (S. Shore Land Co. v. Petersen (1964) 226 Cal.App.2d 725, 732 (internal citations omitted).)

Defendant argues California does not recognize unjust enrichment as an independent cause, which is synonymous with restitution. (Durell v. Sharp Healthcare (2010) 183 Cal.App.4th 1350, 1370; see also Sepanossian v. National Ready Mixed Concrete Co. (2023) 97 Cal.App.5th 192, 206.) Rather, restitution is a general principle underlying various legal doctrines and remedies, rather than a remedy itself. (Sepanossian, supra, at 208.) Defendant’s Notice also states uncertainty for grounds for sustaining the demurrer but provides no argument.

In opposition, Plaintiff argues this court already held on March 16, 2026 that restitution was not categorically unavailable. Rather, the court held at the time, the complaint did not sufficiently allege a restitution claim against Defendant Zaharoni and allowed Plaintiff to amend the complaint as to this cause of action. Moreover, Plaintiff contends this is not like Sepanossian because there the plaintiff’s valid UCL claim already supplied the very restitution sought by the separate unjust-enrichment count.

The court finds the allegations sufficient for the purposes of a demurrer. While under California law, there is no independent cause of action labeled “restitution” or “unjust enrichment”, there can be a quasi-contract claim and a plaintiff who mislabels a claim as “unjust enrichment” will not automatically lose the claim. (See Hernandez v. Lopez (2009) 180 Cal.App.4th 932, 939.) Here, the allegations could support a quasi-contract claim. The complaint alleges Defendant received rental income (a benefit) at Plaintiff’s expense through fraudulent conduct without legal right to collect rents. The court notes “it is well settled that there is no equitable basis for an implied-in-law promise to pay reasonable value when the parties have an actual agreement covering compensation.” (Hedging Concepts, Inc. v. First Alliance Mortgage Co. (1996) 41 Cal.App.4th 1410, 1419.) However, as alleged, Defendant acted through fraud.

Based on the foregoing, the demurrer to the sixth cause of action is OVERRULED.